

SENATE No. 1582

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving Hepatitis C screening.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 1582

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1582) of Mark C. Montigny for legislation to improve Hepatitis C screening. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1423 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving Hepatitis C screening.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4M½ of chapter 111 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out subsection (b) and inserting in place thereof
3 the following subsection:-

4 (b) Every person over the age of 18 who receives health care services from a primary care
5 provider shall be offered a hepatitis C screening test or a hepatitis C diagnostic test unless the
6 provider believes that: (i) the person is being treated for a life threatening emergency; (ii) the
7 person has previously been offered or has received a hepatitis screening test; or (iii) the person
8 lacks capacity to consent to a hepatitis C screening test.

9 SECTION 2. Said section 4M½ is hereby further amended by adding the following
10 subsection:-

11 (c) The department shall promulgate, and from time to time revise, regulations
12 establishing the hepatitis C screening or hepatitis C diagnostic test requirements under subsection
13 (b), including but not limited to the frequency with which a primary care provider must offer a
14 hepatitis C screening test or hepatitis C diagnostic test.

15 SECTION 3. The department shall promulgate regulations required under section 2 not
16 later than 180 days following the effective date of this act.